Statutory Records Backup and Disaster Recovery Service Level Agreement

Schedule 6 to the contract between Dunmore Borough Council and Marchpost Continuity Ltd — Version 1.0

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Customer	Dunmore Borough Council (the “Council”)
Provider	Marchpost Continuity Ltd (the “Provider”)
Systems in scope	9 Systems, listed in Appendix A
Amendments	Amendment No. 1 dated 22 July 2026, effective 1 September 2026

Version	Date	Description	Status
1.0	1 June 2026	Initial issue	In force

Table 0.1 — Version history.

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Amendment No. 1

1. Purpose, Scope and Precedence

1.1 This Schedule sets out the service levels for the backup and disaster recovery of the Council's systems and statutory records, the remedies where those levels are not met, and the governance by which performance is reported to the Council's audit committee. It applies only to the Systems listed in Appendix A.

1.2 Out of scope: systems not listed in Appendix A; the Council's own network and end-user devices; records held by schools and other bodies with separate contracts; and systems the Council has designated in writing as unmanaged.

1.3 Where documents conflict the following order applies, higher prevailing: (i) any Amendment to this Schedule; (ii) this Schedule and its Appendices; (iii) the Council's Information Governance Policy; (iv) the main contract; (v) the Provider's service description. Where this Schedule and the Information Governance Policy each set a **retention** period for the same record, the **longer** period applies, so that a statutory retention period is never shortened by this Schedule.

1.4 The Provider shall supply records needed to answer a request under the Freedom of Information Act 2000 or a subject access request within **3 Business Days** of the Council asking for them.

Note 1.3(a): An Amendment takes effect only on the date stated in it, and prevails over the unamended text from that date.

2. Definitions

Term	Definition
Backup Success Rate	For a System and Service Month, the number of backup jobs producing a Verified Recovery Point divided by the number scheduled, expressed as a percentage.
Business Day	A day other than a Saturday, Sunday or public holiday in England and Wales.
Continuity Band	Band 1, Band 2 or Band 3, as assigned to a System in Appendix A.
DR Exercise	A rehearsal of recovery carried out at the type and frequency in Table 3.1, being a full failover, a partial failover or a tabletop walkthrough.
Invocation Decision Time	The maximum tolerable period between the Council notifying the Provider of a suspected disaster and the Provider confirming in writing whether disaster recovery is invoked.
Monthly System Fee	The recurring charge for a System set out in Appendix A, excluding VAT.
Record Class	Class S, Class F, Class C or Class T, as assigned to a System in Appendix A.
Recovery Point Objective (RPO)	The maximum tolerable period of data loss for a System, measured as the interval between the most recent Verified Recovery Point and the moment of failure.
Recovery Time Objective (RTO)	The maximum tolerable period between disaster recovery being invoked and the System being restored and confirmed available to the Council.
Service Month	A calendar month during which the services are provided.
System	A Council system or dataset listed in Appendix A and assigned a Continuity Band and a Record Class.
Verified Recovery Point	A recovery point that has passed checksum validation and been recorded as valid in the Provider's catalogue.

Table 2.1 — Defined terms.

In this Schedule: (a) “including” means including without limitation; (b) a percentage measured over a Service Month is calculated to two decimal places and rounded half-up; and (c) a figure that rounds to exactly the committed value is treated as meeting the commitment.

3. Continuity Bands and Objectives

3.1 Band matrix

Each System is assigned one Continuity Band. Where a value in this table conflicts with a requirement arising from the System's Record Class, clause 7.3 governs.

Attribute	Band 1 — Statutory	Band 2 — Operational	Band 3 — Supporting
Recovery Point Objective (RPO)	15 minutes	4 hours	24 hours
Recovery Time Objective (RTO)	2 hours	12 hours	72 hours
Invocation Decision Time	30 minutes	2 hours	Not applicable
Backup Success Rate objective	99.6%	99.0%	98.0%

Attribute	Band 1 — Statutory	Band 2 — Operational	Band 3 — Supporting
Copies maintained	4	3	2
Copies held offsite	2	1	1
Immutable copy (lock period)	90 days	30 days	Not provided
Restore test cadence	Monthly	Quarterly	Annually
DR Exercise	Full failover, annually	Partial failover, annually	Tabletop, annually
Data residency	United Kingdom only	United Kingdom only	United Kingdom or EEA
Service credit cap (per Service Month)	50%	40%	25%
Monthly System Fee	£3,400	£1,600	£520

Table 3.1 — Continuity Band matrix. Values are Band defaults and may be overridden by a Record Class requirement under clause 7.3 or by Amendment.

3.2 Band reassignment

The Council may move a System to a different Continuity Band by written request approved by its Senior Information Risk Owner. A move takes effect on the first day of the Service Month following thirty days' notice. Immutable copies already written under a higher Band remain locked for the remainder of their lock period.

4. Backup Execution

4.1 A backup job is successful only where it completes within its scheduled window and produces a Verified Recovery Point. A job completing but failing checksum validation counts as failed.

4.2 Where a job fails the Provider shall retry automatically at least twice before the next scheduled job.

4.3 The RPO is assessed continuously. No more than one RPO breach is recorded for a System in any rolling 24-hour period.

4.4 Backup jobs excluded under Appendix B are removed from both the numerator and the denominator of the Backup Success Rate.

5. Disaster Recovery Invocation

5.1 The Council notifies the Provider of a suspected disaster through the duty line. The Provider must confirm in writing whether disaster recovery is invoked within the Invocation Decision Time in Table 3.1.

5.2 The **RTO runs from the moment disaster recovery is invoked**, not from the Council's first notification. The Invocation Decision Time is measured separately and is additional to the RTO.

5.3 Only the Council's Chief Executive, Section 151 Officer or Senior Information Risk Owner may invoke disaster recovery. The Provider may recommend invocation but may not invoke unilaterally.

5.4 Where several Systems are affected by the same event, the Provider restores them in Continuity Band order, and within a Band in the order the Council specifies at the time of invocation.

6. Testing and Exercises

6.1 The Provider performs a restore test at the cadence in Table 3.1, restoring a sampled recovery point into an isolated environment.

6.2 A DR Exercise is carried out at the type and frequency in Table 3.1. A full failover exercise must demonstrate the System running in the recovery environment and being accepted by the Council's service owner. A tabletop exercise is a documented walkthrough and does not require technical failover.

6.3 A DR Exercise is failed where the System is not brought into service within its RTO, or where the Council's service owner does not accept it. A failed exercise must be re-run within 60 days and attracts a credit under clause 8.5.

6.4 The Provider shall give the Council a written exercise report within 15 Business Days of each DR Exercise, and shall present the annual results to the Council's audit committee.

7. Record Classes and Retention

7.1 Each System is assigned a Record Class in Appendix A, which sets the minimum retention and immutability below.

Record Class	Description	Minimum retention	Immutable copy required
Class S	Statutory registers and civic records	25 years, then transfer to the county archive	Yes — 90 days
Class F	Financial and audit records	7 years from the end of the financial year	Yes — 30 days
Class C	Casework and service request records	10 years from case closure	Yes — 30 days
Class T	Transient operational data	90 days	No

Table 7.1 — Record Class requirements.

7.2 Class S records are transferred to the county archive at the end of the retention period rather than deleted. The Provider shall prepare the transfer package at no additional charge.

7.3 **Record Class overrides.** Where the Continuity Band value in Table 3.1 and the Record Class requirement in Table 7.1 differ for the same System, the **stricter** requirement governs, being the longer retention period and the presence rather than the absence of an immutable copy. This applies even where the Continuity Band provides no immutable copy at all.

7.4 Records subject to a legal hold, a public inquiry or an ongoing complaint notified by the Council are retained until the Council releases the hold in writing, whatever the period in Table 7.1.

8. Service Credits

8.1 Where the Provider misses an objective for a System in a Service Month, the Council is entitled to a credit expressed as a percentage of that System's Monthly System Fee.

8.2 **Backup Success Rate.** Where the rate is below the objective by **0.5** percentage point or less, a credit of **4%** applies; where it is below by more than that, **9%** applies.

8.3 **RPO. 6%** for each RPO breach, maximum **3** per Service Month.

8.4 **RTO. 10%** for each invocation where the System is not restored within its RTO, maximum **2** per Service Month.

8.5 **DR Exercise. 12%** for each failed DR Exercise.

8.6 **Late report. 2%** per System for each monthly report delivered late, up to **3** per contract year.

8.7 **Repeat failure multiplier.** Where a System attracts a credit in consecutive Service Months, the total for the **second** consecutive month is multiplied by **1.5** and the total for the **third and any subsequent** consecutive month by **2**. The multiplier is applied to the sum of the credits under clauses 8.2 to 8.6 before the cap in clause 8.8 is applied.

8.8 The result is then limited to the cap for the System's Continuity Band in Table 3.1. No credit is due where the failure falls within an exclusion in Appendix B.

8.9 The Council must claim within **30 days** of the monthly report. The Provider must respond within **10 Business Days**, giving reasons for any rejection. Credits are applied to the next invoice and are not paid in cash except on termination.

9. Reporting, Maintenance and Audit

9.1 The Provider delivers a monthly report within **10 Business Days** of the end of each Service Month, showing per System: Backup Success Rate, RPO breaches, any invocations with Invocation Decision Time and RTO performance, restore tests, DR Exercises and credits due.

9.2 Planned maintenance is carried out only in the window **Saturdays 20:00 to 00:00**, must not exceed **6 hours** in any Service Month, and requires at least **10 Business Days'** notice. Maintenance must not be carried out in the four weeks before a scheduled election.

9.3 The Council, its internal auditors and the external auditor may audit the Provider's compliance **once** in any contract year on **30 days'** notice, and at any time following a failed DR Exercise.

9.4 The Provider shall notify the Council's Data Protection Officer of any personal data breach within **24 hours** of becoming aware of it, so that the Council can meet its own 72-hour regulatory deadline.

10. Chronic Failure and Exit

10.1 A **Chronic Failure** occurs for a System where its Backup Success Rate is below objective in at least **3** of any **6** consecutive Service Months, or where two consecutive DR Exercises fail.

10.2 On a Chronic Failure the Provider must deliver a remediation plan within **10 Business Days** and present it to the Council's audit committee. Where the Chronic Failure recurs within 6 months of the plan being implemented, the Council may terminate in respect of that System on **90 days'** notice without charge.

10.3 On termination the Provider shall provide exit assistance for up to **180 days**, including transfer of all recovery points and catalogue metadata in an open format, and certified destruction of its own copies on the Council's written instruction. Class S records are transferred to the Council or its nominated archive, never destroyed.

11. Change Control

11.1 Changes require a written variation signed by both parties. Adding or removing a System, or changing its Continuity Band or Record Class, is effected by an Appendix A entry confirmed by email between the named contacts and approved by the Council's Senior Information Risk Owner.

Appendix A — System Inventory

System ID	Description	Continuity Band	Record Class	Monthly System Fee
DBC-REG-001	Electoral register and civic registers	Band 1	Class S	£3,400
DBC-PLN-002	Planning decisions and enforcement records	Band 1	Class S	£3,400
DBC-FIN-003	General ledger and audit trail	Band 1	Class F	£3,400
DBC-REV-004	Council tax and business rates system	Band 2	Class F	£1,600
DBC-HOU-005	Housing allocations casework	Band 2	Class C	£1,600
DBC-ENV-006	Environmental health casework	Band 2	Class C	£1,600
DBC-WEB-007	Public website and online forms	Band 3	Class T	£520
DBC-INT-008	Staff intranet and document store	Band 3	Class T	£520
DBC-GIS-009	Geographic information datasets	Band 3	Class S	£520

Table A.1 — System inventory.

Systems by Continuity Band: Band 1 3, Band 2 3, Band 3 3. Total of Monthly System Fees across all 9 Systems: **£16,560** per Service Month, being **£198,720** per contract year.

> Note A.1: DBC-GIS-009 carries Class S records at Band 3, which provides no immutable copy. Clause 7.3 governs the resulting conflict.

Appendix B — Exclusions

Ref	Event	Treatment
B.1	Failure of the Council's own network, storage or identity systems.	No credit. Affected jobs excluded from the Backup Success Rate.
B.2	A change made by the Council to a System without the notice required by clause 11.1.	No credit for any resulting failure.
B.3	Disaster recovery invoked by a person not authorised under clause 5.3.	No objective applies until a valid invocation is made.
B.4	Data corrupt at source before capture.	No credit. The Provider must still supply the most recent uncorrupted Verified Recovery Point.
B.5	Planned maintenance within its notified window under clause 9.2.	Excluded, unless carried out in the four weeks before a scheduled election.
B.6	Force majeure, including flood, fire and national emergency.	No credit, save that a DR Exercise failure is never excused by force majeure.
B.7	A System designated by the Council in writing as unmanaged.	Out of scope under clause 1.2.

Table B.1 — Exclusions referred to in clause 8.8.

Appendix C — Worked Service Credit Examples

C.1 — DBC-REG-001, Electoral register and civic registers (Band 1, Class S, Monthly System Fee £3,400), July 2026.

Backup Success Rate 99.3% against 99.6%, a shortfall of 0.30 points, so clause 8.2 gives **4%**; 2 RPO breach(es), maximum 3: 2 × 6% = **12%**; 1 invocation(s) outside the RTO, maximum 2: 1 × 10% = **10%**. Sum before any multiplier **26%**. The cap for Band 1 is **50%**; the figure is within the cap, so the credit is **26% of £3,400 = £884.00**.

C.2 — DBC-HOU-005, Housing allocations casework (Band 2, Class C, Monthly System Fee £1,600), August 2026.

Backup Success Rate 98.9% against 99.0%, a shortfall of 0.10 points, so clause 8.2 gives **4%**; 1 RPO breach(es), maximum 3: 1 × 6% = **6%**; monthly report late: **2%**. Sum before any multiplier **12%**. This is consecutive month 2 for this System, so the multiplier in clause 8.7 of **×1.5** applies: 12% × 1.5 = **18%**. The cap for Band 2 is **40%**; the figure is within the cap, so the credit is **18% of £1,600 = £288.00**.

C.3 — DBC-WEB-007, Public website and online forms (Band 3, Class T, Monthly System Fee £520), September 2026.

Backup Success Rate 95.0% against 98.0%, a shortfall of 3.00 points, so clause 8.2 gives **9%**; 4 RPO breach(es), maximum 3: 3 × 6% = **18%**; 3 invocation(s) outside the RTO, maximum 2: 2 × 10% = **20%**; one failed DR Exercise:

12%; monthly report late: **2%**. Sum before any multiplier **61%**. This is consecutive month 3 for this System, so the multiplier in clause 8.7 of **×2** applies: 61% × 2 = **122%**. The cap for Band 3 is **25%**; the figure exceeds the cap, so the credit is **25% of £520 = £130.00**.

Amendment No. 1

Agreed on **22 July 2026** between Dunmore Borough Council and Marchpost Continuity Ltd. Unless stated otherwise it takes effect on **1 September 2026** and has no effect before that date.

A1.1 In Table 3.1 the Recovery Time Objective for **Band 2** is reduced to **8 hours**.

A1.2 In Table 3.1 an immutable copy with a lock period of **14 days** is introduced for **Band 3**.

A1.3 In clause 8.9 the claim period is extended to **45 days**.

A1.4 With effect from **1 April 2027**, and not before, the DR Exercise for **Band 2** becomes **full failover, annually**.

A1.5 All other terms of this Schedule remain unchanged.

Signed for Dunmore Borough Council	Signed for Marchpost Continuity Ltd
Name: Senior Information Risk Owner	Name: Managing Director
Date:	Date: